

Post-MGO Flavor Roadmap

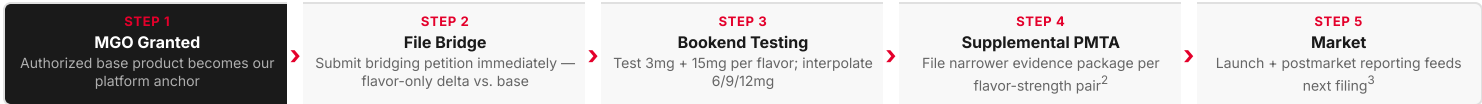
From Authorization to New SKUs

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BOTTOM LINE

Once FRE receives its MGO, we can **immediately file bridging arguments** for new flavors built on our authorized formulation.¹ Since the only change is flavor — not formulation — we qualify for **supplemental PMTAs** that cross-reference our existing data.² Coming out of the NC manufacturing visit, we've aligned on **4 flavors for Round 1: Spearmint, Peppermint, Chili Lime, and Tobacco Caramel** — consuming all **8 available lab testing slots by June**. Lab capacity is the binding constraint: only ~3 US clinical CROs can run the required PK/abuse liability studies, and slots must be booked months ahead.

MGO → NEW SKU PROCESS



BOOKEND TESTING STRATEGY



DECISION FRAMEWORK: SPEED VS. INNOVATION

FASTEST

Pre-tested flavors (Berry, Mango from Cottonmouth) — existing data, minimal net-new testing

STANDARD

Flavor-only delta (Round 1 selections) — bridging petition + new flavor testing

SLOW

Formulation change (e.g., Sour Apple) — nullifies bridging argument, full testing cycle required

ROUND 1 — IMMEDIATE FILING POST-MGO				
8 Slots · 4 Flavors · Target: Before Year-End				
FLAVOR	STRATEGIC RATIONALE	SLOTS	TESTS	PATH
Spearmint	Market leader — combined with Peppermint, represents ~20–25% of total category volume	2	3mg, 15mg	Standard bridge
Peppermint	Completes the mint pair; massive consumer demand, proven category driver	2	3mg, 15mg	Standard bridge
Chili Lime	White space play — no direct comp in US pouch market. Covers citrus + spice positioning; capitalizes on chili lime flavor trend	2	3mg, 15mg	Standard bridge
Tobacco Caramel	California play — CA ~85–90% unflavored; tobacco formulation is CA-compliant. Position as "Vintage Tobacco"	2	3mg, 15mg	Standard bridge

▼ +6 MONTHS ▼

ROUND 2 — FAST FOLLOW				
8 Slots · 4 Flavors · ~6 Months Post-Round 1				
FLAVOR	STRATEGIC RATIONALE	SLOTS	TESTS	PATH
Berry	Cottonmouth portfolio — partial testing already completed; fastest path to Round 2 approval	2	3mg, 15mg	Pre-tested ⚡
Mango	Cottonmouth portfolio — existing data reduces net-new testing burden significantly	2	3mg, 15mg	Pre-tested ⚡
TBD	Based on Round 1 learnings, postmarket data, and market performance	2	3mg, 15mg	Standard bridge
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WHAT MGO DOES NOT DO

- ✗ Authorize future SKUs automatically
- ✗ Eliminate product-by-product FDA orders
- ✗ Grant blanket modified-risk claim rights
- ✗ Remove postmarket reporting obligations

KEY FRAMING

Post-MGO, FRE shifts from a one-off applicant to a **platform company**. Every bridging argument strengthens the next. Postmarket data isn't compliance overhead — it's fuel for Round 2.

LAB CAPACITY: THE BINDING CONSTRAINT

The "8 slots" isn't a planning choice — it's **physical lab capacity**. Three test categories still require product-specific data, even under the **FDA pilot program**:

HPHC

Constituent analysis per product

PK STUDIES

Clinical nicotine absorption curves

ABUSE LIABILITY

Addiction potential vs. comparators

Only ~3 US-based CROs can run confined-clinic tobacco PK/abuse liability studies. **Celerion** (Lincoln, NE) is the dominant player; slots must be booked months in advance. The VTA has **publicly stated** "there is simply not enough HPHC laboratory capacity."

Implication: Lab availability — not formulation readiness or FDA review time — is the pacing item. Round 2 lab time should be booked **now** to secure slots ~6 months out.

CHILI LIME IN MARKET

LOOP

Jalapeño Lime

VELO

Lime Flame

BAOW

Chili Lime

Nicotine's natural bitterness must be factored into flavor selection — making 3mg–15mg work across a single profile is a key formulation challenge.

FDA PILOT PROGRAM

FRE is one of **4 companies** selected for the **FDA nicotine pouch PMTA pilot** (alongside ZYN Ultra, VELO, on!). The pilot allows **bridging via category-wide literature** for consumer perception and switching data — reducing per-SKU research burden while maintaining product-specific HPHC, PK, and abuse liability requirements. Precedent: on! PLUS authorized Dec 2025 in ~18 months (submitted June 2024). More on this here.

SOURCES & FURTHER READING

¹ FDA Tobacco Products Marketing Orders — MGO required to legally market a new tobacco product. ² 21 CFR §1114.15 — Supplemental PMTAs; may cross-reference original PMTA and postmarket reports. ³ 21 CFR §1114.39–.41 — Postmarket reporting requirements for products subject to an MGO. ⁴ FDA ZYN Authorization (Jan 2025) — 20 SKUs authorized; modified-risk claims require separate MRTP. ⁵ FDA on! PLUS Authorization (Dec 2025) — first pilot program decisions; review of TPL memo details here. ⁶ VTA v. FDA FAQ — documents HPHC lab capacity shortage. ⁷ Broughton Group: PMTA Pathway for Nicotine Pouches — challenges and CRO landscape overview.